

hereby set aside in connection with entry of such judgment.

2. 9:00 AM CASE NUMBER: L24-05099

CASE NAME: CAPITAL ONE, N.A. VS. MAI QUEZADA

*HEARING ON MOTION IN RE: TO SET ASIDE CCP 664 DISMISSAL AND ENTER JUDGMENT AGAINST DEFENDANT

FILED BY: CAPITAL ONE, N.A.

TENTATIVE RULING:

Plaintiff Capital One, N.A. ("Plaintiff") filed a Motion to Set Aside CCP 664.6 Dismissal and Enter Judgment on October 8, 2025 ("Motion to Enter Stipulated Judgment after Default"). The Motion to Enter Stipulated Judgment after Default was set for hearing on December 16, 2025.

Background

The parties entered into that certain settlement agreement filed on September 19, 2025 (the "Settlement Agreement"), the terms of which included payment by the defendant Mai K Quezada ("Defendant") in the amount of \$11,229.61, to be paid in accordance with the terms thereof (the "Payment Terms and Conditions"). See Declaration of Laura M. D'Anna filed October 8, 2025 ("Supporting Declaration"), ¶¶3-5 and **Exhibit 1** thereto. As part of the Settlement Agreement, the parties entered into a stipulation for entry of judgment in the event of a default. *Id.*, **Exhibit 1**, ¶¶1-4.

Defendant defaulted on the Payment Terms and Conditions. See Supporting Declaration, ¶9. No notice or opportunity to cure is required under Settlement Agreement. Settlement Agreement, ¶¶4 and 10.

There remains \$11,229.61 due and owing, plus costs of \$597.00. See Supporting Declaration, ¶¶6 and 11.

Analysis

Defendant was duly served with the motion. The motion is unopposed.

Disposition

The Court finds and orders as follows:

1. The Court finds that Defendant was duly served with the motion.
2. The Court finds that Defendant is in default of the Settlement Agreement.
3. The Motion to Enter Stipulated Judgment after Default is GRANTED. Plaintiff shall have judgment against Defendant in the principal amount of \$11,229.61, plus costs of \$597.00, for a total judgment of \$11,826.61.
4. Any prior dismissal entered herein against the Defendant is hereby set aside.

5. The Court shall issue the order after hearing.
6. Plaintiff to submit a form of money judgment against Defendant.

3. 9:00 AM CASE NUMBER: L24-06199

CASE NAME: BANK OF AMERICA, N.A. VS. ALBERTO VAZQUEZ

*HEARING ON MOTION IN RE: FOR ORDER SETTING ASIDE AND VACATING ITS PRIOR ORDER OF DISMISSAL AND FOR ENTRY OF JUDGMENT

FILED BY: BANK OF AMERICA, N.A.

TENTATIVE RULING:

Plaintiff Bank of America, N.A. ("Plaintiff") filed a Motion for Order Setting Aside and Vacating its Prior Order of Dismissal and for Entry of Judgment Pursuant to Stipulation on October 8, 2025 ("Motion to Enter Stipulated Judgment after Default"). The Motion to Enter Stipulated Judgment after Default was set for hearing on December 16, 2025.

Background

The parties entered into that certain settlement agreement on or about April 21, 2023 (the "Settlement Agreement"), the terms of which included payment by the defendant Alberto Patino Vazquez ("Defendant") in the amount of \$12,410.34, to be paid in accordance with the terms thereof (the "Payment Terms and Conditions"). See Declaration of Michael Mallonga filed October 8, 2025 ("Supporting Declaration"), ¶¶3-5 and **Exhibit 1** thereto. As part of the Settlement Agreement, the parties entered into a stipulation for entry of judgment for the foregoing amount plus court costs, less credit for any payments made, in the event of a default. *Id.*, **Exhibit 1**, ¶¶1-4 and 7.

Defendant defaulted on the Payment Terms and Conditions. See Supporting Declaration, ¶6. No notice or opportunity to cure is required under Settlement Agreement. Settlement Agreement, ¶7.

After credit for amounts paid, there remains \$7,710.34 due and owing, plus costs of \$916.50, for a total of \$8,626.84. See Supporting Declaration, ¶¶6-7 and **Exhibit 2** thereto.

Analysis

Defendant was duly served with the motion. The motion is unopposed.

Disposition

The Court finds and orders as follows:

1. The Court finds that Defendant was duly served with the motion. **However, THE PARTIES ARE ORDERED TO APPEAR to confirm whether Defendant was duly served with the motion papers *which contained notice of the assigned hearing information at the time of service or if separate notice of the assigned hearing date was otherwise subsequently given.***
2. Subject to Paragraph 1 above, the Court finds that Defendant is in default of the